

LAFAYETTE COUNTY
FILED

APR 12 2022

JEFF BUSBY
CIRCUIT CLERK

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

IN RE: MATTHEW REARDON

CAUSE NO. UNKNOWN

BY: D.C.

L21-494
L217-295

RESPONSE TO NOTICE OF HEARING

COMES NOW Bela J Chain III, County Attorney for Lafayette County, Mississippi and files this response to the document entitle NOTICE OF HEARING ON ENTERED MOTIONS AND PETITION, issue by issue as follows, to wit:

Motion to Alter or Amend Judgement Under Rule 59:

1) The Circuit Court of Lafayette does not have jurisdiction in this matter. The document as filed is identified as being "In the Justice Court of Lafayette County, Mississippi" and refers to the criminal conviction of Matthew Reardon. Copies of Abstracts of the convictions of Matthew Oliver Reardon are attached hereto collectively as Exhibit "A";

2) This said motion was provided by the Clerk of The Lafayette County Justice to the presiding judge, The Honorable Chris Childers;

3) Judge Childers denied the relief sought. Further commenting that the moving party cited authority to the Mississippi Rules of Civil Procedure which were inapplicable by Order dated 8 December, 2022. A copy of the Order of the presiding judge is attached as Exhibit "B";

4) That ruling on the motion of Matthew Reardon was not appealed and further the principals of res judicata apply and therefore it is final;

5) The Mississippi Rules of Civil Procedure do not apply in criminal matters but rather the Mississippi Rules of Criminal Procedure are the applicable rules;

Motion to Set Hearing Date of De Novo Appeal:

6) The Mississippi Rules of Criminal Procedure specifically Rule 29.1 provides the procedure for taking an appeal from matters in justice court. Specifically by filing certain specified items with the Circuit Court of the applicable county. Rule 29.1(b) sets out in specific detail what is necessary to perfect one's appeal;

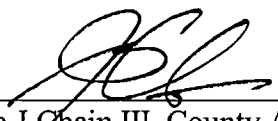
7) To this date Matthew Reardon has not so complied with Rule 29.1 by filing the required items with the Circuit Court of Lafayette County, Mississippi;

8) As noted in the comments to said Rule and referring the Mississippi Rules of Appellate Procedure, Rule 4(e), pending post trial motions do extend the time for the taking of an appeal, Again assuming that the Motion for relief is proper;

To that end, the Motion of Matthew Reardon is without merit for he is not before the Circuit of Lafayette County, Mississippi. Matthew Reardon's post trial motion has been previously ruled on by the Judge assigned in the Justice Court of Lafayette County, Mississippi.

Further, no appeal for trial de novo has been perfected by compliance with the applicable rules, namely Rule 29.1 of the Mississippi Rules of Criminal Procedure.

Respectfully submitted on this the 12th day of April, 2022.



Bela J Chain III, County Attorney,
Lafayette County, MS

CERTIFICATE OF SERVICE

I Bela J Chain III, in his capacity of County Attorney for Lafayette County, Mississippi,
do hereby certify that I have hand delivered the above and foregoing **RESPONSE TO NOTICE
OF HEARING** to Matthew O. Reardon on the 12th day of April, 2022.



Bela J Chain III

STATE OF MISSISSIPPI
ABSTRACT OF COURT RECORD
LAFAYETTE COUNTY

Agency Code: 9036
Ticket No: 6042

Date: 4/11/2022

DEFENDANT

Name: REARDON, MATTHEW OLIVER Race: WHITE Sex: MALE
Physical Address: 664 RD 1057
Mailing Address: _____
City: TUPELO State: MS Zip Code: _____
Drivers License Number: 801186335 State: MS Date of Birth: 3/24/1987
SSN: _____

VEHICLE INFORMATION

Registration (Tag) No: DAM9526 State: MS Year: _____
Vehicle Model Year: 2013 Make: KIA Type: _____

VIOLATION

Charged With: D.U.I. 1ST OFFENSE % BAC: _____ Speed: _____ Zone: _____
Date of Violation: 2/21/2021 Court Date: 11/04/2021 Hwy or Street: HATHORN RD
Charges Were Filed By: BEAVERS, KANDICE Badge No: L29
Comments: _____
Defendant Entered a Plea of: NOT GUILTY
Judgement of Court: GUILTY
By Judge: CHILDERS, CHRIS

Remarks by Court:

11/24/2021 C MASEP AND VICTIM IMPACT, PAY IN 30 DAYS FROM 11/24/2021

Case Notes:

2/25/2021 AL WILLIAMS BAIL BOND CO. \$1,187.00

Defendant was Fined: 400.00 Plus Assessments of: 404.00

Sentenced To: _____
Bail Forfeited () _____ Appealed () _____
Fine Paid () _____

I Certify That This is a True and Correct Copy of My Court Record as Recorded in
Docket: 219 Page: 317
Case: 9291202

Signed: Jill Carney
Date: 4/11/22

Title: Clerk



Exhibit A

STATE OF MISSISSIPPI
ABSTRACT OF COURT RECORD
LAFAYETTE COUNTY

Agency Code: 9036
Ticket No: 13815

Date: 4/11/2022

DEFENDANT

Name: REARDON, MATTHEW OLIVER Race: WHITE Sex: MALE
Physical Address: 664 RD 1057
Mailing Address: _____
City: TUPELO State: MS Zip Code: _____
Drivers License Number: 801186335 State: MS Date of Birth: 3/24/1987
SSN: _____

VEHICLE INFORMATION

Registration (Tag) No: DAM9526 State: MS Year: _____
Vehicle Model Year: 2013 Make: KIA Type: _____

VIOLATION

Charged With: IMPROPER EQUIPMENT HP % BAC: _____ Speed: _____ Zone: _____
Date of Violation: 2/21/2021 Court Date: 11/04/2021 Hwy or Street: HATHORN RD
Charges Were Filed By: WILLIFORD, JACOB Badge No: L47
Comments: _____
Defendant Entered a Plea of: NOT GUILTY
Judgement of Court: GUILTY
By Judge: CHILDERS, CHRIS

Remarks by Court:

11/24/2021 C PAY IN 30 DAYS FROM 11/24/2021

Case Notes:

2/25/2021 AL WILLIAMS BAIL BOND CO. \$1,187.00

Defendant was Fined: 30.00 Plus Assessments of: 116.00

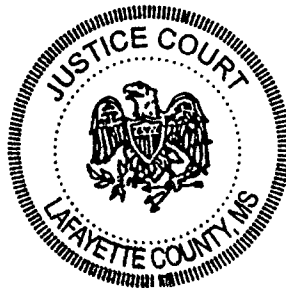
Sentenced To: _____
Bail Forfeited () Appealed ()
Fine Paid ()

I Certify That This is a True and Correct Copy of My Court Record as Recorded in
Docket: 219 Page: 314
Case: 9291198

Signed: Jill Canney

Title: Clerk

Date: 4/11/22



STATE OF MISSISSIPPI
ABSTRACT OF COURT RECORD
LAFAYETTE COUNTY

Agency Code: 9036
Ticket No: 13814

Date: 4/11/2022

DEFENDANT

Name: REARDON, MATTHEW OLIVER Race: WHITE Sex: MALE
Physical Address: 664 RD 1057
Mailing Address: _____
City: TUPELO State: MS Zip Code: 38804
Drivers License Number: 801186335 State: MS Date of Birth: 3/24/1987
SSN: _____

VEHICLE INFORMATION

Registration (Tag) No: DAM9526 State: MS Year: _____
Vehicle Model Year: 2013 Make: KIA Type: _____

VIOLATION

Charged With: EXPIRED / NO TAG % BAC: _____ Speed: _____ Zone: _____
Date of Violation: 2/21/2021 Court Date: 11/04/2021 Hwy or Street: HATHORN RD
Charges Were Filed By: WILLIFORD, JACOB Badge No: L47
Comments: _____
Defendant Entered a Plea of: NOT GUILTY
Judgement of Court: GUILTY
By Judge: CHILDERS, CHRIS

Remarks by Court:

11/24/2021 C PAY IN 30 DAYS FROM 11/24/2021

Case Notes:

2/25/2021 AL WILLIAMS BAIL BOND CO. \$1,187.00

Defendant was Fined: 75.00 Plus Assessments of: 152.25

Sentenced To: _____
Bail Forfeited () _____ Appealed () _____
Fine Paid () _____

I Certify That This is a True and Correct Copy of My Court Record as Recorded in
Docket: 219 Page: 313
Case: 9291197

Signed: Jill Arny Title: Clerk
Date: 4/11/22



STATE OF MISSISSIPPI
ABSTRACT OF COURT RECORD
LAFAYETTE COUNTY

Agency Code: 9036
Ticket No:

Date: 4/11/2022

DEFENDANT

Name: REARDON, MATTHEW Race: _____ Sex: _____
Physical Address: _____
Mailing Address: _____
City: _____ State: _____ Zip Code: _____
Drivers License Number: _____ State: _____ Date of Birth: _____
SSN: _____

VEHICLE INFORMATION

Registration (Tag) No: _____ State: _____ Year: _____
Vehicle Model Year: _____ Make: _____ Type: _____

VIOLATION

Charged With: RESISTING ARREST % BAC: _____ Speed: _____ Zone: _____
Date of Violation: 12/28/2020 Court Date: 11/04/2021 Hwy or Street: _____
Charges Were Filed By: DIXON, COURTNEY Badge No: L28
Comments: _____
Defendant Entered a Plea of: NOT GUILTY
Judgement of Court: GUILTY
By Judge: CHILDERS, CHRIS

Remarks by Court:

11/24/2021 C PAY FINES IN 30 DAYS FROM 11/24/2021
3/22/2021 A MOTIONS DENIED ON HEARING

Case Notes:

1/14/2021 A ONE BAIL BONDS \$700.00

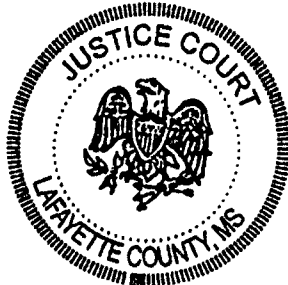
Defendant was Fined: 150.00 Plus Assessments of: 152.25
Sentenced To: _____
Bail Forfeited () Appealed ()
Fine Paid ()

I Certify That This is a True and Correct Copy of My Court Record as Recorded in
Docket: 70 Page: 332
Case: 9290610

Signed: Jill Conroy

Title: Clerk

Date: 4/11/22



STATE OF MISSISSIPPI
ABSTRACT OF COURT RECORD
LAFAYETTE COUNTY

Agency Code: 9036
Ticket No:

Date: 4/11/2022

DEFENDANT

Name: REARDON, MATTHEW Race: _____ Sex: _____
Physical Address: _____
Mailing Address: _____
City: _____ State: _____ Zip Code: _____
Drivers License Number: _____ State: _____ Date of Birth: _____
SSN: _____

VEHICLE INFORMATION

Registration (Tag) No: _____ State: _____ Year: _____
Vehicle Model Year: _____ Make: _____ Type: _____

VIOLATION

Charged With: DISORDERLY CONDUCT % BAC: _____ Speed: _____ Zone: _____
Date of Violation: 12/28/2020 Court Date: 11/04/2021 Hwy or Street: _____
Charges Were Filed By: DIXON, COURTNEY Badge No: L28
Comments: _____
Defendant Entered a Plea of: NOT GUILTY
Judgement of Court: GUILTY
By Judge: CHILDERS, CHRIS

Remarks by Court:

11/24/2021 C PAY FINE IN 30 DAYS FROM 11/24/2021
3/01/2021 A MOTIONS DENIED ON HEARING

Case Notes:

1/14/2021 A ONE BAIL BONDS \$700.00

Defendant was Fined: 75.00 Plus Assessments of: 182.25
Sentenced To: _____
Bail Forfeited () Appealed ()
Fine Paid ()

I Certify That This is a True and Correct Copy of My Court Record as Recorded in
Docket: 70 Page: 331
Case: 9290609

Signed: Jill Carney Title: Clerk
Date: 4/11/22



IN THE JUSTICE COURT OF LAFAYETTE COUNTY, MISSISSIPPI

STATE OF MISSISSIPPI

VS.

CASE NUMBERS 9290609, 9290610, 9291197
92911978, 9291202

MATTHEW REARDON

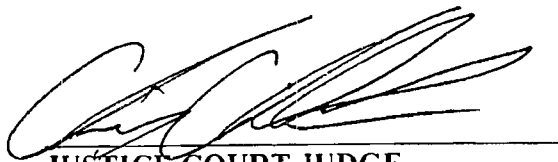
MOVANT

**ORDER ON MOTION TO ALTER OR AMEND JUDGEMENT UNDER M.R.C.P.
59(E) OR IN THE ALTERNATIVE TO VACATE JUDGEMENT ENTERED
PURSUANT TO M.R.C.P. 60(B)(1,2,4,6)**

The above Motion was filed by the Movant and upon initial review of said Motion the Court finds that the Mississippi Rule of Civil Procedure Rule 1 states that the scope of “These rules govern procedure in the circuit courts, chancery courts, and county courts in all suits of a civil nature....” Therefore the above motion is not well taken. and the Court hereby denies said motion: it is therefore

ORDERED that the Motion is denied.

SO ORDERED. this the 8th day of December. 2021.


JUSTICE COURT JUDGE